and subject to the terms and conditions prescribed in Rule U-24, that the amendments to the previous joint applications-declarations be and they hereby are granted and permitted to become effective forthwith subject to the terms and conditions prescribed in Rule U-24.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 51-2113; Filed, Feb. 12, 1951; 8:48 a. m.]

[File Nos. 70-2435, 70-2436]

SOUTHERN CO. ET AL.

ORDER RELEASING JURISDICTION OVER FEES AND EXPENSES

At a regular session of the Securities and Exchange Commission, held at its office in the city of Washington, D. C., on the 7th day of February A. D. 1951.

In the matter of the Southern Company, Alabama Power Company, File No. 70-2435; Electric Bond and Share Company, File No. 70-2436.

The Commission having by order dated August 24, 1950 granted and permitted to become effective applications and declarations filed by the Southern Company, Alabama Power Company, and Electric Bond and Share Company ("Bond and Share") relating, among other things, to the transfer by Bond and Share of its holdings of the common stock of Birmingham Electric Company to the Southern Company in exchange for common stock of the Southern Company; and

The Commission having in said order reserved jurisdiction with respect to the payment of accounting fees and expenses incurred by Bond and Share in connection with the proposed transactions; and Haskins and Sells having submitted evidence with respect to accounting services rendered in these proceedings and having requested the payment of $11,626.43 for services and $2,603.86 as reimbursement of expenses; and

The Commission having examined such evidence and finding that the proposed payment of fees and expenses to Haskins and Sells is not unreasonable and finding it appropriate in the public interest to release jurisdiction over the payment of such fees and expenses:

It is ordered, That the jurisdiction heretofore reserved over the accounting fees and expenses incurred by Bond and Share in connection with these proceedings be, and the same hereby is, released,

It is further ordered, That said order of August 24, 1950, is, except as herein expressly modified, continued in full force and effect.

By the Commission.

[SEAL] ORVAL L. DUBOIS, *Secretary.*

[F. R. Doc. 51-2112; Filed, Feb. 12, 1951; 8:48 a. m.]

DEPARTMENT OF JUSTICE

Office of Alien Property

AUTHORITY: 40 Stat. 411, 55 Stat. 839, Pub. Laws 322, 671, 79th Cong., 60 Stat. 50, 925; 50 U. S. C. and Supp. App. 1, 616; E. O. 9193, July 6, 1942, 3 CFR, Cum. Supp., E. O. 9567, June 8, 1945, 3 CFR, 1945 Supp., E. O. 9788, Oct. 14, 1946, 11 F. R. 11981.

[Vesting Order 17298]

EMILIO SYLVESTER

In re: Estate of Emilio Sylvester, also known as Emilio Ernesto Borjas Sylvester Stelzer, deceased. File No. F-63-12933.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Edgar Sylvester, also known as Edgar Burchard Gustav Karl Sylvester, as Edgar Sylvester Beyerlein, and as Edgar Burchard Gustav Karl Sylvester Beyerlein, and Mrs. Gertrude Siebel, also known as Mrs. Gertrud Sylvester Beyerlein de Siebel, and as Gertrud Anna Helga Sylvester Beyerlein, who on or since the effective date of Executive Order 8389, as amended, and on or since December 11, 1941, have been residents of Germany, are nationals of a designated enemy country (Germany);

2. That the property described as follows: All property in the possession, custody or control of Credit Suisse New York Agency, 30 Pine Street, New York, New York, as depositary thereof for the account of the Estate of Emilio Sylvester, also known as Emilio Ernesto Borjas Sylvester Stelzer, deceased, including particularly but not limited to:

(a) $6,000—Dominion of Canada 3¼ percent bonds—due January 15, 1961, together with any and all rights thereunder and thereto;

(b) 25 shares American Can Co. common, 25 shares American Tobacco Co. common, 50 shares Borden Co. common, 50 shares General Electric Co. common, together will all declared and unpaid dividends thereon; and

(c) Cash in the amount of $12,470.63 as of September 26, 1950, together with any accruals thereon,

is property within the United States owned or controlled by, payable or deliverable to, held on behalf of or on account of, or owing to, or which is evidence of ownership or control by, the aforesaid nationals of a designated enemy country (Germany);

and it is hereby determined:

3. That the national interest of the United States requires that the aforesaid Edgar Sylvester, also known as Edgar Burchard Gustav Karl Sylvester, as Edgar Sylvester Beyerlein, and as Edgar Burchard Gustav Karl Sylvester Beyerlein, and Mrs. Gertrude Siebel, also known as Mrs. Gertrud Sylvester Beyerlein de Siebel, and as Gertrud Anna Helga Sylvester Beyerlein, be treated as nationals of a designated enemy country (Germany).

All determinations and all action required by law, including appropriate consultation and certification, having been made and taken, and, it being deemed necessary in the national interest,

There is hereby vested in the Attorney General of the United States the property described in subparagraph 2 hereof subject to all lawful fees and disbursements of Credit Suisse New York Agency, 30 Pine Street, New York, New York, as depositary of the aforesaid property, held for the account of the Estate of Emilio Sylvester, also known as Emilio Ernesto Borjas Sylvester Stelzer, deceased, to be held, used, administered, liquidated, sold, or otherwise dealt with in the interest of and for the benefit of the United States.

The terms "national" and "designated enemy country" as used herein shall have the meanings prescribed in section 10 of Executive Order 9193, as amended.

Executed at Washington, D. C. on February 6, 1951.

For the Attorney General.

[SEAL] PAUL V. MYRON, *Deputy Director, Office of Alien Property.*

[F. R. Doc. 51-2096; Filed, Feb. 9, 1951; 8:56 a. m.]

[Vesting Order 17203]

ERNST AND JOHANNA HEYMANN

In re: Securities owned by and debts owing to Ernst Heyman, also known as Ernst Theodor Heyman, and Johanna Heymann. F-63-13050-A-1.

Under the authority of the Trading With the Enemy Act, as amended, Executive Order 9193, as amended, and Executive Order 9788, and pursuant to law, after investigation, it is hereby found:

1. That Ernst Heyman, also known as Ernst Theodor Heymann, and Johanna Heymann on or since the effective date of Executive Order 8389, as amended, and on or since December 11, 1941, have been residents of Germany and are nationals of a designated enemy country (Germany);

2. That the property described as follows:

a. Five (5) shares of $15.00 par value common stock of Consolidated Natural Gas Co., 30 Rockefeller Plaza, New York, New York, evidenced by a certificate numbered 0137672, registered in the name of and presently in the custody of Wertheim & Co., 120 Broadway, New York, New York, together with all declared and unpaid dividends thereon,

b. Fifty-three (53) shares and sixty-three two-hundredths (63/200ths) of a share of $25 par value common stock of Standard Oil Co. of New Jersey, 30 Rockefeller Plaza, New York, New York, evidenced by certificates numbered and in the amounts listed below:

Certificate No.:	*Number of shares*
C 86775	1.
582789	1.
735704	1.
966166	50.
F 244874	8/200ths of a share.
F 230735	55/200ths of a share.